

Court No. - 36

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Petitioner Counsel :- Tripathi B.G. Bhai, Pramod Kumar Singh

Respondent Counsel :- Rakesh K. Srivastafa

Hon'ble R.K. Agrawal, J.

Hon'ble Rajesh Chandra, J.

The contention of the petitioner is that the electricity connection obtained by him is a domestic connection and not for commercial use whereas, billing is being done on commercial rate. According to the petitioner at the most, he is liable to pay a sum of Rs. 12,208/- towards electricity charges when calculated on domestic rates.

Sri Rakesh K. Srivastava, learned counsel appearing for the respondents no. 2 and 3 seeks time to obtain instructions. Let a counter affidavit be filed within three weeks. Rejoinder affidavit may be filed within two weeks.

List on 27th September, 2010.

As an interim measure, it is directed that the recovery proceedings for realisation of Rs. 1,24,517/- and odd toward electricity dues shall remain stayed provided the petitioner deposits a sum of Rs.12,208/- within fifteen days from today.

In the event of default in depositing the aforesaid amount, the interim protection granted by this Court shall stand automatically discharged and the authorities will be at liberty to proceed in accordance with law.

Order Date :- 19.8.2010

M/A.

Court No. - 35

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Petitioner Counsel :- Tripathi B.G. Bhai, Pramod Kumar Singh

Respondent Counsel :- Rakesh K. Srivastava, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

Learned counsel for the petitioner submits that he has deposited the amount as directed earlier. Respondents are granted two weeks time to file counter affidavit.

List thereafter for admission.

Interim order granted earlier to continue till then.

Order Date :- 27.9.2010

SB

Court No. - 36

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Petitioner Counsel :- Tripathi B.G. Bhai, Pramod Kumar Singh

Respondent Counsel :- Rakesh K. Srivastafa, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Amreshwar Pratap Sahi, J.

As prayed, counter-affidavit may be filed within 3 weeks and no more.

List thereafter.

As the interim order is expiring today, it is extended till the next date of listing.

Order Date :- 12.10.2010

Irshad

Court No. - 36

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Petitioner Counsel :- Tripathi B.G. Bhai, Pramod Kumar Singh

Respondent Counsel :- Rakesh K. Srivastava, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Rajesh Chandra, J.

As prayed by Sri R.K. Srivastava, the case is passed over for today. List in the next cause list. Interim order is extended till the next date of listing.

Order Date :- 10.11.2010

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Court No. - 36

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Petitioner Counsel :- Tripathi B.G. Bhai, Pramod Kumar Singh

Respondent Counsel :- Rakesh K. Srivastafa, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble Shyam Shankar Tiwari, J.

As prayed by Sri R.K.Srivastava, learned counsel for the respondent, list in the next cause list to enable him to file Counter Affidavit.

List in the next cause list.

Interim order passed earlier to continue till the next date.

Order Date :- 24.11.2010

Hsc/

Court No. - 36

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Petitioner Counsel :- Tripathi B.G. Bhai, Pramod Kumar Singh

Respondent Counsel :- Rakesh K. Srivastafa, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble S.C. Agarwal, J.

Shri R.K. Srivastava, learned counsel for the respondents has sent illness slip.

Case is passed over.

List it in the next cause list.

Interim order granted earlier shall continue till the next date of listing.

Order Date :- 1.12.2010

SB

Court No. - 36

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Petitioner Counsel :- Tripathi B.G. Bhai, Pramod Kumar Singh

Respondent Counsel :- Rakesh K. Srivastafa, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble Shyam Shankar Tiwari, J.

No counter affidavit has been filed and the time has expired.

Interim order is to continue.

Order Date :- 8.12.2010

Ram Murti

Court No. - 43

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Counsel for Petitioner :- Tripathi B.G. Bhai, Pramod Kumar Singh

Counsel for Respondent :- Rakesh K. Srivastafa, S.C.

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

List again showing the name of Shri Chandra Shekhar Singh, Advocate as one of the counsel for respondents i.e., Uttar Pradesh Power Corporation Ltd.

Order Date :- 21.3.2023

IB

Court No. - 43

Case :- WRIT - C No. - 49567 of 2010

Petitioner :- Mithai Lal

Respondent :- U.P. Power Corporation Ltd. Lko. Thr M.D. And Others

Counsel for Petitioner :- Tripathi B.G. Bhai, Pramod Kumar Singh

Counsel for Respondent :- Rakesh K. Srivastava, S.C.

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

Heard learned counsel for the petitioner and Sri R.K. Srivastava, learned counsel for the respondents.

By the present writ petition, the petitioner is challenging the electricity bill dated 25.1.2010 on the ground the same was issued treating the electricity connection of the petitioner as commercial, though he had obtained domestic electricity connection.

It is contended on behalf of the petitioner that as per the impugned bill, demand was raised of Rs. 1,24,517/-, though it could not be more than Rs.17,208/- if the same was calculated treating the connection of the petitioner as domestic out of which the petitioner has already deposited Rs.5000/-. In support of his connection the petitioner has relied upon the judgement dated 3.3.2023 passed in Writ-C No. 47278 of 2010 (*Somai vs. U.P. Power Corporation Ltd. Lko. Thru. Chairman/Md and others*) and prayed that his writ petition may also be disposed of in terms of above order passed by this Court.

Considering the submissions of the parties, we dispose of the present petition with a direction that the recovery proceedings for realisation of Rs.1,24,517/-, in pursuance of the impugned electricity bill dated 25.1.2010, shall remain stayed, provided the petitioner deposits Rs.12,208/- within 15 days from today. In the event of default in depositing the aforesaid amount, the interim protection, granted by this Court, shall automatically discharged and authorities shall proceed in accordance with law.

It is further directed that the petitioner shall file an objection against the impugned electricity bill before the respondent No.2 within three weeks from today along with copy of the present order and the respondent No.2 will decide the same by a speaking order and until the objections are decided, no further recovery shall be made from the petitioner in pursuance of the impugned bill.

If the decision is taken against the petitioner by respondent No.2, then the petitioner will have the liberty to file an appeal against the said assessment order as per the provisions of Electricity Act, 2003 as well as U.P. Electricity Supply Code, 2005.

With the aforesaid direction, the writ petition stands **disposed of**.

Order Date :- 28.3.2023/Vandana